

SANHITA360

CHAPTER II

GENERAL EXPLANATIONS

IPC Sections 6-52A and BNS Sections 2-3

Definitions, interpretation and principles of joint criminal liability

ACADEMIC NOTE

This study material explains the transition from the Indian Penal Code, 1860 to the Bharatiya Nyaya Sanhita, 2023. It is educational material and not a substitute for the official statutory text or legal advice.

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Purpose and Scope

General Explanations are the interpretive machinery of the penal law. They determine how recurring words, mental states and participation rules operate throughout the statute. A definition of an offence must therefore be read together with these provisions and the General Exceptions even when the offence does not repeat them.

IPC Section 6 made every definition, penal provision and illustration subject to the General Exceptions. BNS Section 3(1) preserves the same method. IPC Section 7 required an expression once explained to carry that meaning throughout the Code; BNS Section 3(2) continues that rule.

The transition is structural. IPC Chapter II distributed the rules across Sections 6-52A. The BNS places definitions in Section 2 and the general explanations in Section 3. Accordingly, many IPC sections correspond to a clause within BNS Section 2 or a sub-section of BNS Section 3, not to a separately numbered BNS section.

Exam rule: never write that IPC Sections 6-52A became BNS Sections 2-3 on a one-to-one basis. State that the subject matter was consolidated and then identify the relevant clause or sub-section.

Master IPC-to-BNS Map

IPC provision	BNS location	Subject and transition
Sections 6-7	Section 3(1)-(2)	Provisions subject to General Exceptions; expressions used consistently.
Sections 8-12	Section 2 definitions	Gender, number, man, woman, person and public are consolidated; BNS expressly recognises transgender in its gender rule.
Sections 13, 15-16	No operative equivalent	Obsolete colonial definitions were repealed under the IPC and are not revived.
Sections 14, 17-21	Section 2 definitions	Government, Judge, Court and public servant are consolidated; India is governed by the current constitutional territory.
Sections 22-31	Section 2; Section 3(3)	Property, dishonest or fraudulent conduct, belief, documents and possession.
Sections 32-38	Section 2(1); Section 3(4)-(9)	Acts, illegal omissions, common intention, shared mental states and cooperation.
Sections 39-44	Section 2 definitions	Voluntarily, offence, special or local law, illegal, legal duty and injury.
Sections 45-52A	Section 2 definitions	Life, death, animal, vessel, time, oath, good faith and harbour.

Section-by-Section Explanation

The following entries follow the attached Chapter II content in statutory order. Every heading expressly uses the word Section, and every IPC provision is followed by its corresponding BNS location.

Section 6 IPC: Definitions in the Code to be understood subject to exceptions

Corresponding BNS provision: Section 3(1) BNS.

Every definition of an offence, penal provision and illustration must be read subject to the General Exceptions, even when the exception is not repeated. Thus infancy, legal duty and the other statutory exceptions qualify offence definitions throughout the Code.

Section 7 IPC: Sense of expression once explained

Corresponding BNS provision: Section 3(2) BNS.

An expression explained in one part of the Code carries that statutory meaning throughout the Code, subject to context.

Section 8 IPC: Gender

Corresponding BNS provision: Section 2(10) BNS.

The IPC used the pronoun 'he' for male or female persons. The BNS expressly applies the gender rule to male, female and transgender persons.

Section 9 IPC: Number

Corresponding BNS provision: Section 2(22) BNS.

Unless the context shows otherwise, the singular includes the plural and the plural includes the singular.

Section 10 IPC: Man and woman

Corresponding BNS provision: Sections 2(19) and 2(35) BNS.

Man means a male human being of any age, and woman means a female human being of any age.

Section 11 IPC: Person

Corresponding BNS provision: Section 2(26) BNS.

Person includes a company, association or body of persons, whether incorporated or not.

Section 12 IPC: Public

Corresponding BNS provision: Section 2(27) BNS.

Public includes any class of the public or any community.

Section 13 IPC: Definition of Queen

Corresponding BNS provision: No operative BNS equivalent.

This colonial definition was omitted by the Adaptation of Laws Order, 1950 and is not reproduced in the BNS.

Section 14 IPC: Servant of Government

Corresponding BNS provision: Section 2(28) BNS, where relevant.

The IPC expression covered an officer or servant appointed, continued or employed under governmental authority. The modern BNS principally uses the detailed definition of public servant.

Section 15 IPC: Definition of British India

Corresponding BNS provision: No operative BNS equivalent.

This definition was repealed by the Adaptation of Laws Order, 1937 and has no modern counterpart.

Section 16 IPC: Definition of Government of India

Corresponding BNS provision: No operative BNS equivalent.

This definition was repealed and is not revived by the BNS.

Section 17 IPC: Government

Corresponding BNS provision: Section 2(12) BNS.

Government means the Central Government or a State Government.

Section 18 IPC: India

Corresponding BNS provision: No separate definition in Section 2 BNS.

The historical IPC wording must be read with later constitutional and statutory changes. The BNS applies throughout India under Section 1 and does not repeat the old definition in Section 2.

Section 19 IPC: Judge

Corresponding BNS provision: Section 2(16) BNS.

Judge includes a person officially designated as a Judge and a person legally empowered, alone or as part of a body, to give a definitive judicial judgment.

Section 20 IPC: Court of Justice

Corresponding BNS provision: Section 2(5) BNS - Court.

The BNS uses Court for a Judge acting judicially alone or a body of Judges legally empowered to act judicially as a body.

Section 21 IPC: Public servant

Corresponding BNS provision: Section 2(28) BNS.

The inclusive definition covers the specified military, judicial, court, governmental, electoral, local-authority, corporation and public-duty functions. The legal function and statutory category must be proved.

Section 22 IPC: Movable property

Corresponding BNS provision: Section 2(21) BNS.

Movable property includes property of every description except land and things attached to the earth or permanently fastened to something attached to the earth. The BNS omits the IPC word 'corporeal', widening the drafting.

Section 23 IPC: Wrongful gain and wrongful loss

Corresponding BNS provision: Sections 2(36), 2(37) and 2(38) BNS.

Wrongful gain is unlawful gain of property to which the person is not legally entitled; wrongful loss is unlawful loss of property to which the person is legally entitled. The concepts include wrongful retention, exclusion and deprivation.

Section 24 IPC: Dishonestly

Corresponding BNS provision: Section 2(7) BNS.

A person acts dishonestly when intending to cause wrongful gain to one person or wrongful loss to another.

Section 25 IPC: Fraudulently

Corresponding BNS provision: Section 2(9) BNS.

A person acts fraudulently only when acting with intent to defraud.

Section 26 IPC: Reason to believe

Corresponding BNS provision: Section 2(29) BNS.

Reason to believe requires sufficient cause to believe; mere suspicion is not enough.

Section 27 IPC: Property in possession of wife, clerk or servant

Corresponding BNS provision: Section 3(3) BNS.

Property held on a person's account by that person's spouse, clerk or servant is treated as being in that person's possession. Temporary or occasion-specific service is included.

Section 28 IPC: Counterfeit

Corresponding BNS provision: Section 2(4) BNS.

Counterfeiting means causing one thing to resemble another with intent to practise deception, or with knowledge that deception is likely. Exact imitation is unnecessary.

Section 29 IPC: Document

Corresponding BNS provision: Section 2(8) BNS.

A document is matter expressed or described on a substance by letters, figures or marks and intended or capable of being used as evidence. The BNS expressly includes electronic and digital records.

Section 29A IPC: Electronic record

Corresponding BNS provision: Sections 2(8) and 2(39) BNS.

The IPC adopted the Information Technology Act definition. The BNS includes electronic and digital records within document and imports undefined technology expressions through Section 2(39).

Section 30 IPC: Valuable security

Corresponding BNS provision: Section 2(31) BNS.

A valuable security is a document creating, extending, transferring, restricting, extinguishing or releasing a legal right, or acknowledging legal liability or absence of a legal right.

Section 31 IPC: Will

Corresponding BNS provision: Section 2(34) BNS.

A will means any testamentary document.

Section 32 IPC: Words referring to acts include illegal omissions

Corresponding BNS provision: Section 3(4) BNS.

Unless the context indicates otherwise, references to acts done extend to illegal omissions.

Section 33 IPC: Act and omission

Corresponding BNS provision: Sections 2(1) and 2(25) BNS.

Act includes a single act or a series of acts; omission includes a single omission or a series of omissions.

Section 34 IPC: Acts done by several persons in furtherance of common intention

Corresponding BNS provision: Section 3(5) BNS.

When several persons do a criminal act in furtherance of their common intention, each is liable as if that person had done the act alone. Participation and the shared intention must be proved.

Section 35 IPC: Act criminal by reason of knowledge or intention

Corresponding BNS provision: Section 3(6) BNS.

Where an act is criminal because it is done with particular knowledge or intention, each participant joining with that state of mind is liable as if acting alone with it.

Section 36 IPC: Effect caused partly by act and partly by omission

Corresponding BNS provision: Section 3(7) BNS.

An offence may be completed through the combined operation of a positive act and an illegal omission.

Section 37 IPC: Co-operation by doing one of several acts constituting an offence

Corresponding BNS provision: Section 3(8) BNS.

A person who intentionally cooperates by doing any one of several acts through which an offence is committed commits that offence.

Section 38 IPC: Persons concerned may be guilty of different offences

Corresponding BNS provision: Section 3(9) BNS.

Participants in the same criminal act may be guilty of different offences because their intentions, knowledge or legally relevant circumstances differ.

Section 39 IPC: Voluntarily

Corresponding BNS provision: Section 2(33) BNS.

An effect is caused voluntarily when it is caused by means intended to cause it or by means known, or reasonably believed, likely to cause it.

Section 40 IPC: Offence

Corresponding BNS provision: Section 2(24) BNS.

Offence generally means a thing punishable by the governing penal statute. In specified provisions it also extends to things punishable under special or local law, subject to the statutory conditions.

Section 41 IPC: Special law

Corresponding BNS provision: Section 2(30) BNS.

A special law is a law applicable to a particular subject.

Section 42 IPC: Local law

Corresponding BNS provision: Section 2(18) BNS.

A local law is a law applicable only to a particular part of India.

Section 43 IPC: Illegal and legally bound to do

Corresponding BNS provision: Section 2(15) BNS.

Illegal covers what is an offence, prohibited by law, or a ground for civil action. A person is legally bound to do what it would be illegal for that person to omit.

Section 44 IPC: Injury

Corresponding BNS provision: Section 2(14) BNS.

Injury means harm illegally caused to a person in body, mind, reputation or property.

Section 45 IPC: Life

Corresponding BNS provision: Section 2(17) BNS.

Life means the life of a human being unless the context indicates otherwise.

Section 46 IPC: Death

Corresponding BNS provision: Section 2(6) BNS.

Death means the death of a human being unless the context indicates otherwise.

Section 47 IPC: Animal

Corresponding BNS provision: Section 2(2) BNS.

Animal means any living creature other than a human being.

Section 48 IPC: Vessel

Corresponding BNS provision: Section 2(32) BNS.

Vessel means anything made for conveying human beings or property by water.

Section 49 IPC: Year and month

Corresponding BNS provision: Section 2(20) BNS.

The IPC referred to the British calendar. The BNS uses the modern expression Gregorian calendar for reckoning a month or year.

Section 50 IPC: Section

Corresponding BNS provision: No separate definition in Section 2 BNS.

The IPC defined section as a numbered portion of a Chapter. The BNS uses the ordinary legislative structure without separately repeating this definition.

Section 51 IPC: Oath

Corresponding BNS provision: Section 2(23) BNS.

Oath includes a legally substituted solemn affirmation and an authorised declaration made before a public servant or used for proof, whether in Court or not.

Section 52 IPC: Good faith

Corresponding BNS provision: Section 2(11) BNS.

Nothing is done or believed in good faith when it is done or believed without due care and attention. Mere honesty is insufficient.

Section 52A IPC: Harbour

Corresponding BNS provision: Section 2(13) BNS.

Harbour includes supplying shelter, food, drink, money, clothes, arms, ammunition, conveyance or other assistance to help a person evade apprehension.

Interpretive Rules and Persons

General Exceptions and consistent meanings

A penal provision is never isolated from the statutory exceptions. A child below the statutory age, or a police officer acting under a legal duty, may fall within a General Exception even though the offence definition does not repeat that qualification. Once the statute defines a term, that defined meaning follows it throughout the enactment unless the context requires otherwise.

Gender, number, person and public

IPC Sections 8-12 addressed gender, singular and plural, man, woman, person and public. BNS Section 2 consolidates these concepts. A person includes a company, association or body of persons, whether incorporated or not. Public includes a class of the public or a community. The BNS gender definition expressly covers male, female and transgender persons by reference to the Transgender Persons (Protection of Rights) Act, 2019.

Government, Judge, Court and public servant

The statutory meaning of Judge extends beyond a job title and turns on legal authority to give a definitive judgment. Court refers to a Judge, or body of Judges, acting judicially. Public servant is an inclusive functional definition covering specified judicial, military, governmental, local-authority, electoral and public-duty roles. Always connect the person to the relevant statutory category rather than relying only on ordinary speech.

Historical caution: IPC Sections 13, 15 and 16 concerned Queen, British India and Government of India and had already been omitted or repealed. They have no live BNS counterpart.

Property and Culpable Mental States

Movable property and possession

Movable property covers corporeal property other than land and things attached to the earth or permanently fastened to something attached to the earth. Possession may be attributed through a spouse, clerk or servant holding property on a person's account. BNS Section 3(3) retains this possession rule and includes temporary or occasion-specific service.

Wrongful gain, wrongful loss and dishonestly

Wrongful gain is gain by unlawful means of property to which the gaining person is not legally entitled. Wrongful loss is the corresponding unlawful deprivation of property to which the losing person is legally entitled. Wrongful gain includes wrongful retention as well as acquisition; wrongful loss includes being wrongfully kept out of property as well as being deprived of it. A person acts dishonestly when intending wrongful gain to one person or wrongful loss to another.

Fraudulently, reason to believe and counterfeit

Fraudulently requires an intent to defraud; it is not established merely because a statement was wrong. Reason to believe requires sufficient cause and is stronger than suspicion. Counterfeit focuses on causing one thing to resemble another with intent, or knowledge of likelihood, that deception will be practised. Exact imitation is unnecessary.

Problem method: identify the property interest, the person legally entitled, the unlawful means and the accused's precise intention. Do not use dishonest and fraudulent as interchangeable labels.

Documents, Digital Records and Valuable Security

IPC Section 29 defined document broadly as matter expressed or described on a substance by letters, figures or marks and capable of evidencing that matter. IPC Section 29A separately adopted the Information Technology Act definition of electronic record. BNS Section 2 consolidates and modernises the concept: document includes electronic and digital records as well as conventional written material.

Examples include a contract, cheque, power of attorney, map, plan, instructions and an endorsement whose legal meaning arises from mercantile usage. The legal focus is the recorded matter and its capacity for use as evidence, not paper as a medium.

A valuable security is a document that creates, extends, transfers, restricts, extinguishes or releases a legal right, or acknowledges legal liability or absence of a legal right. A will is a testamentary document. The same conceptual distinctions remain relevant under the BNS.

Digital transition: an email, server log, database entry or digitally signed instrument may be a document. Questions of proof and admissibility are governed separately by evidence law; classification as a document does not itself establish authenticity.

Acts, Omissions and Group Liability

Acts include illegal omissions

IPC Sections 32-33 treated references to acts as extending to illegal omissions, unless a contrary intention appeared, and treated act or omission as including a series. BNS Section 2 defines act as a single act or series of acts, while Section 3(4) carries the act-and-illegal-omission rule.

Common intention

IPC Section 34 is substantially carried into BNS Section 3(5). When a criminal act is done by several persons in furtherance of their common intention, each is liable for that act as if personally done. The prosecution must prove the criminal act, participation, and a shared intention connected to its commission. Mere presence or similar intention, without the required connection, is insufficient.

Shared knowledge or intention

IPC Section 35 corresponds to BNS Section 3(6). Where conduct becomes criminal because it is done with particular knowledge or intention, each participant who joins with that mental state is liable as though acting alone with it.

Combined causation and intentional cooperation

IPC Sections 36-37 correspond to BNS Section 3(7)-(8). An effect caused partly by an act and partly by an illegal omission is treated in the same way as an effect caused entirely by either. A person intentionally cooperating by doing one of several acts constituting an offence commits that offence, even though another participant performs the remaining acts.

Different offences from the same act

IPC Section 38 corresponds to BNS Section 3(9). People involved in the same criminal act may be guilty of different offences because their intention, knowledge, provocation, capacity or other circumstances differ. Group involvement does not erase individual culpability.

Common intention is a rule of joint liability, not a substitute for proof. Analyse each accused person's participation and mental state separately.

Voluntarily, Offence, Illegality and Injury

Voluntarily

A person causes an effect voluntarily when using means intended to cause it or means known, or reasonably believed, likely to cause it. Direct desire for the precise consequence is therefore not always necessary. The statutory definition must be read with the mental element of the particular offence.

Offence, special law and local law

The definition of offence is context-sensitive and may include conduct punishable under the general penal statute or, for specified provisions, under a special or local law. A special law concerns a particular subject; a local law applies to a particular part of India. Always read the clause used by the particular offence rather than assuming a universal meaning.

Illegal and legally bound

Illegal covers what is an offence, what law prohibits, and what supplies a ground for civil action. A person is legally bound to do what it would be illegal to omit. This wide definition is crucial where liability depends on breach of duty or an illegal omission.

Injury

Injury means harm illegally caused to a person in body, mind, reputation or property. It is broader than physical hurt. The prosecution must still establish that the harm was illegally caused and that the remaining ingredients of the offence are present.

Remaining Core Definitions

IPC provision	BNS location	Subject and transition
Life / death	BNS Section 2	Refer to the life or death of a human being unless context indicates otherwise.
Animal	BNS Section 2	Any living creature other than a human being.
Vessel	BNS Section 2	Anything made for conveyance by water of human beings or property.
Year / month	BNS Section 2	Reckoned according to the Gregorian calendar under the modern wording.
Oath	BNS Section 2	Includes a lawful solemn affirmation and an authorised declaration used for proof.
Good faith	BNS Section 2	Requires due care and attention; honest belief alone is insufficient.
Harbour	BNS Section 2	Includes shelter, food, drink, money, clothes, arms, ammunition, conveyance or other assistance to evade apprehension, subject to statutory context.

Material Changes Under the BNS

- Consolidation: dozens of IPC provisions are reorganised into two preliminary BNS sections.
- Digital drafting: document expressly includes electronic and digital records; electronic communication is separately defined.

- Inclusive gender: the BNS expressly recognises transgender persons in the gender definition.
- New collected definitions: child, mental illness and several technology-related expressions are expressly included.
- Terminology update: Court replaces the older expression Court of Justice in the definition structure.
- Historical cleanup: omitted colonial definitions are not reproduced as operative law.
- Continuity: the core meanings of dishonestly, fraudulently, reason to believe, good faith, common intention and intentional cooperation substantially continue.

How to Answer a Problem Question

- Identify the date of conduct and decide whether the IPC or BNS applies.
- Locate the substantive offence and separate its conduct, circumstance, result and mental elements.
- Underline each defined expression and consult IPC Sections 6-52A or BNS Sections 2-3 as applicable.
- For omissions, identify the legal duty and explain why failure to act was illegal.
- For group conduct, prove participation and apply the correct rule: common intention, shared knowledge or intention, combined causation, or intentional cooperation.
- Consider General Exceptions because every definition and penal provision is read subject to them.
- Apply the facts to each ingredient and give an individual conclusion for each accused person.

High-value distinctions

IPC provision	BNS location	Subject and transition
Suspicion	Reason to believe	Reason to believe requires sufficient cause.
Honest belief	Good faith	Good faith additionally requires due care and attention.
Wrongful gain/loss	Dishonestly	The property consequence supplies the object of the intention.
Intent to deceive	Fraudulently	The statutory inquiry is intent to defraud, considered in context.
Similar intention	Common intention	Common intention requires a shared intention linked to the criminal act.
Presence	Participation	Presence alone is insufficient unless it intentionally contributes within the relevant rule.

Revision Summary

- IPC 6 maps in substance to BNS 3(1); IPC 7 to BNS 3(2).
- Most IPC definitions from Sections 8-31 and 39-52A are consolidated in BNS Section 2.
- IPC possession and act-or-omission rules are in BNS Section 3(3)-(4).
- IPC common intention and related participation rules in Sections 34-38 are in BNS Section 3(5)-(9).
- Good faith means due care and attention; reason to believe means sufficient cause.
- Dishonestly centres on wrongful gain or wrongful loss; fraudulently centres on intent to defraud.
- Documents under the BNS include electronic and digital records.
- The same criminal act may produce different offences for different participants.

Official Reading and Disclaimer

[Bharatiya Nyaya Sanhita, 2023 - official Ministry of Home Affairs text](#)

[Indian Penal Code, 1860 - India Code text](#)

**The statutory text should always be checked for amendments, notifications and binding judicial interpretation.
This educational material does not provide legal advice.**